

ADVOCATE'S FORMAL STATUTORY LEGAL NOTICE

Issued under Section 35 of the Consumer Protection Act, 2019

FROM:

Advocate Rajesh K. Varma, High Court of Bombay
Chambers: 412, Lawyers Chambers, Fort, Mumbai - 400001

TO:

Global FastTrack Logistics India Private Limited
Registered Office: Andheri East, Mumbai - 400069

SUBJECT MATTER & FACTS:

Under instructions from my client, Mr. Vivek Sen, residing at Juhu, Mumbai, I hereby issue this statutory legal notice to address your gross deficiency in service and unfair trade practices under the Consumer Protection Act, 2019.

On 5th September 2024, my client entrusted your courier service with a consignment of high-precision scientific testing equipment (Waybill #GFT-994821) valued at INR 4,80,000, destined for delivery to Bengaluru.

Notwithstanding the express payment of priority transit insurance, your personnel failed to deliver the consignment and subsequently declared the entire package lost due to negligent custody.

STATUTORY DEMAND AND 15-DAY CURE PERIOD:

- You are hereby called upon to pay my client the sum of **INR 4,80,000** towards the full declared value of the lost consignment, together with interest at 12% per annum from 5th September 2024 until payment.
- You are further called upon to pay **INR 1,00,000** towards compensation for severe mental agony, business dislocation, and legal expenses.
- Fifteen (15) Days Notice:** You are required to remit the total sum of INR 5,80,000 within fifteen (15) days of receipt of this notice.

NOTICE OF INTENDED LITIGATION:

Please note that should you fail or neglect to comply with the demands within the stipulated 15-day period, my client has given peremptory instructions to institute consumer complaint proceedings against your company before the District Consumer Disputes Redressal Commission, Mumbai, at your entire risk as to costs and consequences.